

Salig Ram Gupta v. State of U.P. (KESCO bill recovery)

High Court of Judicature at Allahabad · Division Bench · 12 April 2016 · Writ-C No. 13924 of 2016 · **Writ disposed; relegated to cl. 6.5(b); recovery stayed.**

HEADNOTE

A consumer disputing the accuracy of a bill on which recovery has been initiated must complain under clause 6.5(b) of the U.P. Electricity Supply Code, 2005; the writ court will not try those disputed facts. The petition was disposed of with one week to complain and two weeks for the authority to decide, recovery stayed for four weeks or until the complaint is decided, and supply to be restored forthwith on deposit.

FACTUAL SUMMARY

The petitioner, a consumer of Kanpur Electricity Supply Company, challenged recovery of alleged outstanding electricity dues and the correctness of the bill. On the first listing the Court noted serious allegations against KESCO employees and directed production of original records. An SDO produced the file, which showed a provisional assessment of Rs 1,22,696 without any date fixed for personal hearing. Recovery proceedings had already been initiated on that assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy dispute — statutory complaint

HOLDING

Where the consumer disputes the accuracy of a bill and recovery of outstanding dues has been initiated, disputed questions of fact are to be raised by complaint before the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005, not in writ. The petitioner was given one week to complain and the authority two weeks to decide in accordance with law; recovery remains in abeyance for four weeks or till disposal of the complaint, whichever is earlier, and the connection is to be restored forthwith after the petitioner deposits the amount. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE PROVISIONAL ASSESSMENT OF RS 1,22,696 AND THE BILL ON WHICH RECOVERY WAS INITIATED

Court recorded disputed questions of fact and relegated the petitioner to clause 6.5(b) without deciding the bill on merits. ¶ 1